

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

May 19, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5.**

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	23CV424190	AI Technology & Systems v. Renesas Electronics America	Motion withdrawn
9:00 2	24CV4421247	Todd Wilson v. Gabrielle Dinata, et. al.	Plaintiff petitions this court to compel further deposition testimony from Defendant. Defendant directed by her attorney was instructed not to answer questions that were not privileged or restricted by any court order. (See <i>Stewart v. Colonial Agency</i> (2001) 87 Cal.App.4 th 1006, 1015.) Plaintiff's petition to compel further disposition is GRANTED. Plaintiff's motion to award damages is GRANTED. Defendant Gabriella Fong ordered to pay \$2,025 in attorney fees.
9:00 3	25CV457389	Jesus Escanuela et.al. vs. Peter Koetz	Defendants ICOM Mechanical and Peter Koetz filed a motion for entry of judgment against Plaintiff. Plaintiff filed no opposition. On November 20, 2025, this Court had previously ordered a judgment on the Pleadings against Plaintiff with leave to amend within 20 days the fifth cause of action and no leave to amend as to the other causes of action. Plaintiff never filed an amended complaint. Defendants motion for Judgment against Plaintiff is GRANTED.
9:00 4	25CV465413	Debasish Roy vs. Qi Xiang, et. al.	Off calendar, Plaintiff filed dismissal.
9:00 5	25CV472651	Dee Morgan vs. The Terrace of Los Altos Senior Living	Defendant filed a first amended answer. Motion to strike is MOOT.
9:00 6	25CV477954	SIU Holdings vs. Pouya Taaghol, et.al.	Case on Motion for Limited Discovery submitted on Line 6
9:01 1	25CV477085	SophLogic Global LLC vs. Sreedhar Sivaraman, et. al.	Attorney for Plaintiff moves to withdraw as counsel. No party opposes withdrawal. Plaintiff's attorney's motion is GRANTED.

LINE 6

The motion for limited discovery by plaintiffs SIU Holdings Limited ("SIU"), Axis Capital Partners Limited ("Axis"), and Ever Trump Investment Limited ("ETIL") (collectively, "Plaintiffs") came on for hearing before the Honorable Rafael A. Sivilla-Jones on May 14, 2026 at 9:00 a.m. in Department 6. The

matter having been submitted, after full consideration of the authorities submitted by each party, and arguments made by the parties in their papers and the hearing, the court makes the following ruling:

Defendant Pouya Taaghol (“Defendant”) specially moves to strike the complaint, arguing that the defamation cause of action is barred by the common interest privilege, is nonactionable opinion and that the purportedly defamatory statements are, in fact, true. Plaintiffs SIU Holdings Limited (“SIU”), Axis Capital Partners Limited (“Axis”) and Ever Trump Investment Limited (“ETIL”) (collectively, “Plaintiffs”) move for limited discovery, seeking to compel initial responses to requests for production numbers (“RFPs”) 2, 4, 5, 10, 12, 13, 16, 19, 20, 22, 24, and 26 through 30.

In opposition, defendant Pouya Taaghol (“Defendant”) agrees to provide responses to RFPs 12, 13, 16, 22, 24 and 27-29 subject to a protective order with a “Highly Confidential” designation, acknowledging good cause for the discovery requests. (See *Balla v. Hall* (2021) 59 Cal.App.5th 652, 692 (stating that while “[a]s a general rule, discovery is stayed upon the filing of an anti-SLAPP motion... the trial court may... ‘for good cause shown... order that specified discovery be conducted’”).) As to these RFPs, Defendant provides no evidence that either SIU or Axis are competitors of BDF; at the very least, these plaintiffs would be entitled to the documents sought by the requests as they are directly relevant to Defendant’s arguments in support of his special motion to strike and Plaintiffs’ ability to oppose those arguments. Defendant’s opposition also fails to explain how requests to RFPs 12, 13 and 16 involve purported trade secrets. (See *City of Palo Alto v. Public Employment Relations Bd.* (2016) 5 Cal.App.5th 1271, 1302 (Sixth District stating that “[w]hen points are perfunctorily raised without adequate analysis and authority, we may treat them as abandoned or forfeited”).) Defendant also neither establishes the existence of a trade secret (see *Amgen Inc. v. California Correctional Health Care Services* (2020) 47 Cal.App.5th 716, 733 (stating that “[t]he party claiming the trade secret privilege under Evidence Code section 1060 bears the burden of proving its entitlement to that privilege”)), nor adequately explains how the purported trade secret would be revealed by documents sought by RFPs 22, 24 and 27-29. Accordingly, Plaintiffs’ motion to compel initial responses to RFPs 12, 13, 16, 22, 24 and 27-29 is GRANTED. Parties are ordered to stipulate to the Model Confidentiality Order published by the Complex Division of the Santa Clara County Superior Court. Defendant shall

provide verified, code-compliant responses without objections to RFPs 12, 13, 16, 22, 24 and 27-29 within 10 days of the Court's order.

Further, Plaintiffs' motion to compel initial responses to RFPs 2, 4, 5, 10, 19, 20 and 30 is also GRANTED. Plaintiffs show good cause for these requests as they seek evidence from Defendant needed to establish a prima facie case. (See *Balla, supra*, 59 Cal.App.5th at pp.691-692 (stating that "[t]he trial court reasonably found good cause for discovery, noting its importance in showing actual malice and that the defendant is generally a primary source of evidence"); see also *Schroeder v. Irvine City Council* (2002) 97 Cal.App.4th 174, 191 (stating that "if the plaintiff makes a timely and proper showing in response to the motion to strike that a defendant or witness possesses evidence needed by plaintiff to establish a prima facie case, the plaintiff must be given the reasonable opportunity to obtain that evidence through discovery before the motion to strike is adjudicated... [t]he trial court, therefore, must liberally exercise its discretion by authorizing reasonable and specified discovery timely petitioned for by a plaintiff... when evidence to establish a prima facie case is reasonably shown to be held, or known, by defendant or its agents and employees").) Defendant shall provide verified, code-compliant responses to RFPs 12, 13, 16, 22, 24 and 27-29 without objections within 10 days of the Court's order.

Should Defendant withhold any documents to these RFPs 2, 4, 5, 10, 12, 13, 16, 19, 20, 22, 24, and 26-30 on the basis of the attorney-client privilege or the work product doctrine, Defendant shall also provide a privilege log with the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document's date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted. (See *Catalina Island Yacht Club v. Super. Ct. (Beatty)* (2015) 242 Cal.App.4th 1116, 1130 (stating that "[a] privilege log must identify with particularity each document the responding party claims is protected from disclosure by a privilege and provide sufficient factual information for the propounding party and court to evaluate whether the claim has merit... [and] typically should provide the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document's date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise

privilege or protection asserted”).)